

26TRCV00348 26TRCV00348

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Case Number: 26TRCV00348 Hearing Date: July 16, 2026 Dept: B

Moving

Parties: Defendant City of Torrance

Responding

Party: Plaintiffs Tillie C. Smith and Andrea Bytnar

Demurrer to First

Amended Complaint

The Court considered the moving, opposition, and reply papers.

RULING

The

demurrer is SUSTAINED WITHOUT LEAVE TO AMEND as to the seventh cause of action in the FAC.

BACKGROUND

On January 29, 2026, plaintiffs Tillie C. Smith, individually and as trustee of the Tillie C. Smith Revocable Trust, and Andrea Bytnar, as co-trustee of the Tillie C. Smith Revocable Trust, filed a complaint against Nicholas Yiakas, individually and as trustee of the Nicholas Yiakas Trust, Jenny Yiakas, and City of Torrance.

On

March 24, 2026, plaintiffs filed a FAC for (1) trespass, (2) nuisance, (3) negligence, (4) tortious diversion of surface waters, (5) declaratory relief,

and (6) injunctive relief against Nicholas and Jenny Yiakas and (7) negligence against City of Torrance.

LEGAL

AUTHORITY

When

considering demurrers, courts read the allegations liberally and in context. *Taylor v. City of Los Angeles Dept. of Water and Power* (2006) 144 Cal. App. 4th 1216, 1228. "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed." *SKF Farms v. Superior Court* (1984) 153 Cal. App. 3d 902, 905. "The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." *Hahn v. Mirda* (2007) 147 Cal. App. 4th 740, 747.

DISCUSSION

Defendant

City of Torrance demurs to the seventh cause of action for negligence on the ground that it fails to state sufficient facts to constitute a cause of action.

The

FAC alleges that the Smith property and Yiakas property adjoin each other and share common property boundaries. The

Yiakas property is immediately upslope from the Smith property. FAC, ¶10.

In connection with making improvements to the Yiakas property, the City required the Yiakas to comply with various conditions related to the drainage of surface water from the Yiakas property.

On May 4, 2016, the Planning Commission of City issued Resolution No.

16-043 related to an application for a Modification of a previously approved

Precise Plan of Development submitted on behalf of Yiakas. The following condition related to drainage at the Yiakas property: "That the plot

plan shall show site drainage and that all new roof/hardscape drainage shall be directed away from the top of slope and towards the street or approved drainage way via pump or gravity drain prior to the issuance of any building permits." *Id.*, ¶11.

The City Drainage Condition is targeted at preventing surface water diversion, slope instability, and damage to neighboring property. *Id.*, ¶12.

The

FAC further alleges that pursuant to the City's municipal code, the City Drainage Condition was a mandatory prerequisite condition for the issuance of a building permit to the Yiakas in order to prevent slope instability and damage from surface water runoff. Sometime in 2016, the City building official issued the Yiakas a building permit without the Yiakas' compliance with the City Drainage Condition. In issuing the Building Permit the City's building official's role was ministerial and the building official had no discretion to ignore the Yiakas' noncompliance with the City Drainage Condition. The City's building official did not exercise any discretion in regard to the City Drainage Condition and/or issuance of the Building Permit. Id., ¶13. The Yiakas failed or refused to comply with conditions imposed by the City in respect to the drainage at the Yiakas property including the City Drainage Condition; and the City had a duty to enforce the City Drainage Condition.

Id., ¶14. On February 1, 2024, an unnatural flow of water from the Yiakas property onto the Smith property destabilized the land resulting in the collapse of the hillside onto the Smith property. Id., ¶15. The Smith house was yellow tagged and has remained unoccupied from and after at least February 3, 2024. Id., ¶17.

Seventh

cause of action for negligence

The

FAC alleges that pursuant to the City's municipal code, the City Drainage Condition was a prerequisite condition for the issuance of the Building Permit to the Yiakas in order to prevent slope instability and surface water runoff damage. Sometime in 2016, the City Building official issued the Building Permit to the Yiakas without the Yiakas' compliance with the City Drainage Condition. In issuing the Building Permit, the City's building official's role was ministerial and the building official had no discretion to ignore the Yiakas' noncompliance with the City Drainage Condition.

Id., ¶75. The City owed a duty to plaintiffs to exercise due care in respect to actions related to granting approvals and issuance of permits, including the Building Permit, for work at the Yiakas property. The City owed a duty to exercise due care with respect to requiring compliance with conditions imposed on the Yiakas by the City. The

City had a duty to enforce conditions imposed by the City in respect to the drainage at the Yiakas property. Id., ¶76. The City breached its duty of care owed to plaintiffs by issuing the Building Permit, granting approvals and/or issuing permits for work at the Yiakas property in a faulty and negligent manner. The City breached the duty of care owed to plaintiffs by issuing the Building Permit to the Yiakas without the Yiakas complying with the City Drainage Condition and allowing the Yiakas to drain surface water from the Yiakas property in contravention of conditions imposed by the City Drainage Condition. Id., ¶77.

Defendant

City argues that the City is absolutely immune from tort claims based on the issuance of a permit for private development, pursuant to the Gov. Claims Act, citing to Gov. Code §§818.2 and 818.4.

Defendant asserts that a condition of approval imposed by the City on the Yiakas defendants, as part of the City's discretionary approval of their project, cannot be the source of a City mandatory duty, particularly when there was no requirement for the City to impose any conditions of approval at all. Defendant further argues that

plaintiffs have not identified a mandatory duty with which the City failed to comply. Defendant further argues that

Gov. Code §815.6 (mandatory duty) does not apply because California courts have consistently and specially held that building permits are discretionary permits subject to the immunities set forth in Gov. Code §§818.4 and 821.1. Even if plaintiffs could identify a mandatory duty the City failed to comply with, defendant contends that the FAC is conclusory "upon information and belief," without the specificity required by law for such a claim, and does not plead facts sufficient to establish that the issuance of the alleged building permit was the proximate cause of the slope failure eight years later or facts showing the existence of a mandatory duty. Defendant asserts that the FAC does not allege what provision of the Drainage Condition was violated, nor any allegations indicating how the alleged building permit did not comply with the Drainage Condition. In any event, defendant argues, plaintiffs' exclusive remedy against the City is a writ of mandate but that the time to file a writ has passed and, thus, plaintiffs' cause of action is barred by the statute of limitations.

See *Jefferson Street Ventures, LLC v. City of Indio* (2015) 236

Cal. App. 4th 1175, 1195 ("the grant of a land use permit . . . is an adjudicatory act. A proceeding under

Code of Civil Procedure section 1094.5 is the exclusive remedy for judicial review") (citation omitted).

In opposition, plaintiffs argue that the allegations are sufficient because they allege facts establishing that the building official's role in issuing the building permit to the Yiakas was ministerial and that the building official violated it. Plaintiffs assert that they alleged that the Resolution imposed a mandatory drainage condition requiring the Yiakas' compliance with the City Drainage Condition before any building permit could issue to them, and that the building official nevertheless issued the building permit despite their noncompliance. Therefore, plaintiffs argue, accepting the FAC's allegations as true, the building official was therefore required to act in prescribed manner and lacked discretion or judgment to issue the building permit in the absence of Yiakas' compliance. Plaintiffs contend that the building official was under a mandatory duty not to issue the building permit. Plaintiffs also assert that compliance with the word "shall" in the City Drainage Condition regarding the issuance of the building permit has a mandatory, not discretionary meaning. Plaintiffs further dispute defendant's cited cases. They also dispute that they were required to bring a writ of mandate instead of a negligence claim as they were not aware that the building official had issued the Building Permit in the absence of the Yiakas complying with the Drainage Condition.

In reply, the City reiterates its arguments that it is absolutely immune under Gov. Code §§818.2 and 818.4 and that plaintiffs cannot establish liability under Gov. Code §815.6.

Defendant asserts that the Resolution containing the Drainage Condition was not an "enactment"; the Drainage Condition does not impose a mandatory duty on the City but instead clearly involves discretion on its face and pursuant to case law holding that the decision to issue a building permit is inherently discretionary; and the Drainage Condition imposes obligations on Yiakas, not the City; and the FAC fails to plead facts with particularity and sufficient to support the three mandatory elements under Gov. Code §815.6.

The Court rules as follows: The cause of action for negligence against the City is barred by Gov. Code §§818.2 and 818.4. Under Gov. Code §818.2, "[a] public entity is not liable for an injury caused by adopting or failing to adopt an enactment or by failing to enforce any law." Under Gov. Code §818.4, "[a] public entity is not liable for an injury caused by the issuance, denial, suspension or revocation of, or by the failure or refusal to issue, deny, suspend or revoke, any permit, license, certificate, approval, order, or similar authorization where the public entity or an employee of the

public entity is authorized by enactment to determine whether or not such authorization should be issued, denied, suspended or revoked.”

Plaintiffs

argue that these immunities only apply to discretionary acts. “[T]he decision whether or not to issue a building permit is the sort of discretionary decision covered by Government Code sections 818.4 and 821.2.” Thompson v. City of Lake Elsinore (1993) 18 Cal. App. 4th 49, 55 (citations omitted). Defendant correctly points out that it is not required to impose conditions of approval on the project, but “may” do so at its discretion. See TMC §96.2.4(b) (RJN, Ex. 1). Thus, even if the building official erred in issuing a building permit without satisfaction of the drainage condition, defendant is immune from plaintiffs’ claim. Plaintiffs may not plead around this simply by asserting that the building official’s role was ministerial.

For

the same reasons, the Court finds that Gov. Code §815.6 is inapplicable. Under this section, “[w]here a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty.” “A ministerial duty is one that is required to be performed in a prescribed manner under the mandate of legal authority without the exercise of discretion or judgment.” Hacala v. Bird Rides, Inc. (2023) 90 Cal. App. 5th 292, 305 (citation omitted). “To establish a mandatory or ministerial duty, the enactment at issue must be ‘obligatory, rather than merely discretionary or permissive, in its directions to the public entity; it must require, rather than merely authorize or permit, that a particular action be taken or not taken.’ It is not enough, moreover, that the public entity or officer have been under an obligation to perform a function if the function itself involves the exercise of discretion.” Id. at 305-306. As stated, issuance of the building permit was not a ministerial duty.

The demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

ORDER

The

Court GRANTS defendant's request for judicial notice in full.

The

demurrer is SUSTAINED WITHOUT LEAVE TO AMEND as to the seventh cause of action in the FAC.

Moving

defendant shall file a proposed judgment of dismissal.

Moving

defendant is ordered to give notice of ruling.